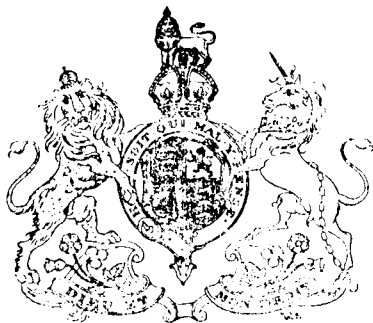




CHAPTER ccxv.

An Act to enable the City of Birmingham Tramways Company Limited to construct additional tramways and for other purposes. A.D. 1903.
[11th August 1903.]

WHEREAS the City of Birmingham Tramways Company Limited (in this Act called “the City Company”) are owners and lessees of tramways in and near the city of Birmingham constructed under the powers contained in the respective Orders and Acts set forth in the schedule to this Act :

And whereas it is expedient that the City Company should be authorised to construct the additional tramways and to acquire the lands and to execute the works in this Act described and to work the additional tramways by means of mechanical power as by this Act provided :

And whereas the district of Yardley in the county of Worcester is a rural district (in this Act called “the Yardley District”) under the jurisdiction of the Yardley Rural District Council (in this Act called “the Yardley Council”) who for the purposes of the City of Birmingham Tramways Act 1897 are also the local authority of the said district within the meaning of the Tramways Act 1870 :

And whereas it is expedient that the Yardley Council should be authorised to work the existing tramways within the Yardley District as well as other tramways whether within or without the said district for the time being belonging to or leased by the Yardley Council or over which they may have running powers and to provide the means and appliances for so doing as by this Act provided :

And whereas the mayor aldermen and citizens of the city of Birmingham (in this Act called “the corporation”) are possessed

A.D. 1903. — of tramways in the city of Birmingham (in this Act called “the city”) which are leased to the City Company and the Birmingham and Midland Tramways Limited (in this Act called “the Midland Company”) and in the present session of Parliament the corporation are applying for an Act to authorise them inter alia to construct other tramways and works connected therewith described in the Bill for the said Act and to work such tramways by means of mechanical power and some or all of the aforesaid tramways may or will be connected directly or indirectly with the tramways leased as aforesaid or with tramways situate in districts adjacent or near to the city or with the tramways by this Act authorised :

And whereas it is expedient that powers should be conferred upon the councils of the districts and borough herein-after referred to and the City Company the Midland Company and the British Electric Traction Company (in this Act referred to as “the Traction Company”) and on the corporation or any of them to enter into and carry into effect agreements with reference to all or any of the purposes of this Act :

And whereas it is expedient in reference to the agreements aforesaid and generally in respect to the provisions and objects of this Act that some of the provisions of the Tramways Act 1870 and of the Orders and Acts set forth in the schedule to this Act as well as of any existing rule order or regulation of the Board of Trade which would be repugnant to the provisions and objects of this Act should be modified as herein-after provided :

And whereas it is expedient that the City Company the Midland Company and the Traction Company or any one or more of them should be authorised to appropriate and use as stations for generating electrical energy for the purposes of any of the tramways in this Act mentioned all or any of the lands herein-after described :

And whereas plans and sections showing the lines and levels of the tramways by this Act authorised and also books of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands required or which may be taken for the purposes or under the powers of this Act were duly deposited with the respective clerks of the peace for the counties of Warwick and Worcester and are in this Act referred to respectively as the deposited plans sections and books of reference :

And whereas the objects of this Act cannot be effected without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

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PART I.

PRELIMINARY.

1. This Act may be cited for all purposes as the Birmingham District Tramways Act 1903. Short title.

2. The following Acts and parts of Acts are except where expressly varied by this Act incorporated with and form part of this Act (that is to say) :— Incorporation of general Acts.

The Lands Clauses Acts ;

Section 3 (Interpretation of terms) and Parts II. and III. of the Tramways Act 1870 :

Provided that the provisions of section 7 of the Telegraph Act 1878 shall apply (instead of the provisions of section 30 of the Tramways Act 1870) to any alteration of or interference with any telegraphic line belonging to or used by the Postmaster-General The expression "telegraphic line" in this Act has the same meaning as in the Telegraph Act 1878.

3. This Act is divided into parts as follows :—

Part I.—Preliminary.

Part II.—Additional Tramways.

Part III.—Tramways in Yardley District.

Part IV.—Miscellaneous.

Division of Act into parts.

4. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith have the same respective meanings unless there be something in the subject or context repugnant to such construction : Interpretation.

"Additional tramways" means the tramways by this Act authorised ;

"Tramways" means any tramways other than additional tramways ;

"Yardley District" means the rural district of Yardley and "Yardley Council" means the rural council of the Yardley District ;

"The councils" means the urban district councils of Aston Manor Erdington Handsworth and King's Norton and Northfield the corporation of Smethwick and the rural district council of Yardley ;

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- “The City Company” means the City of Birmingham Tramways Company Limited ;
- “The Midland Company” means the Birmingham and Midland Tramways Limited ;
- “The Traction Company” means the British Electric Traction Company Limited ;
- “The companies” means the City Company the Midland Company and the Traction Company ;
- “The corporation” means the mayor aldermen and citizens of the city of Birmingham ;
- “City” means the city of Birmingham ;
- “Mechanical power” includes steam electrical and every other motive power not being animal power ;
- “Engine” includes motor.

Correction of errors &c. in deposited plans and books of reference.

5. If there be any omission misstatement or wrong description of any lands or of the owners lessees or occupiers of any lands shown upon the deposited plans or specified in the deposited books of reference the City Company after giving ten days' notice to the owners lessees and occupiers of the lands in question may apply to two justices acting for the county in which such lands are situate for the correction thereof and if it appear to the justices that the omission misstatement or wrong description arose from mistake they shall certify the same accordingly and they shall in their certificate state the particulars of the omission and in what respect any such matter is misstated or wrongly described and such certificate shall be deposited with the clerk of the peace for the said county and a duplicate thereof shall also be deposited with the town clerk of the city or borough or the clerk to the district council of the urban or rural district in which the lands affected thereby are situate and such certificate and duplicate respectively shall be kept by such clerks respectively with the other documents to which the same relate and thereupon the deposited plans and books of reference shall be deemed to be corrected according to such certificate and it shall be lawful for the City Company to take the lands and execute the works in accordance with such certificate.

PART II.

ADDITIONAL TRAMWAYS.

Power to City Company to make additional tramways.

6. Subject to the provisions of this Act the City Company may make form lay down work use and maintain in the lines and according to the levels shown on the deposited plans and sections

and in all respects in accordance with those plans and sections the additional tramways herein-after described with all proper rails plates sleepers works and conveniences connected therewith and may enter upon take and use such of the lands delineated on the said plans and described in the deposited books of reference as may be required for that purpose Provided always that the Tramways Nos. 1 1A 2 and 4 shall not be constructed until the roads whereon the same are proposed to be constructed shall have been widened by and at the expense of the City Company to the reasonable satisfaction of the Worcestershire County Council.

The additional tramways herein-before referred to and authorised by this Act will be situate in the counties of Worcester and Warwick and are—

Tramway No. 1 2 miles 1 furlong 6 chains in length whereof 1 mile 3 furlongs 7 chains is single line and 5 furlongs 9 chains is double line commencing in Stratford Road Sparkhill by a junction with the existing tramways at a point 112 yards or thereabouts north-west of Fulham Road passing thence into and along Warwick Road (part of which is known as High Street Acocks Green) and terminating in the said road at a point 13 yards or thereabouts measured in a north-westerly direction from Westley Road :

Tramway No. 1A double line 2·10 chains in length commencing in Warwick Road Sparkhill by a junction with Tramway No. 1 at a point 70 yards or thereabouts from its commencement passing thence into and terminating in Stratford Road by a junction with the existing tramways at a point 37 yards or thereabouts north-west of Fulham Road :

Tramway No. 2 4 furlongs 6·30 chains in length whereof 2 furlongs 3·30 chains is single line and 2 furlongs 3 chains is double line commencing in Warwick Road (part of which is known as High Street Acocks Green) by a junction with Tramway No. 1 at its termination above described passing thence along and terminating in the said road at or about the point at which the boundary between the counties of Worcester and Warwick crosses that road :

Tramway No. 3 3 furlongs 5·50 chains in length whereof 2 furlongs 6·50 chains is single line and 9 chains is double line commencing in Warwick Road by a junction with Tramway No. 2 at its termination above described passing

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thence in a south-easterly direction along and terminating in the said road at or about the north-eastern end of St. Bernard's Road :

Tramway No. 4 1 mile 7 furlongs 9·50 chains in length whereof 1 mile 3 furlongs 5·50 chains is single line and 4 furlongs 4 chains is double line commencing in Stratford Road by a junction with the existing tramways at their termination at a point thirty yards or thereabouts measured in a westerly direction from the centre of the bridge carrying the said road over the River Cole passing thence in an easterly and south-easterly direction along and terminating in Stratford Road at or about the point at which the boundary between the counties of Worcester and Warwick crosses that road :

Tramway No. 5 4 furlongs 7·40 chains in length whereof 3 furlongs 4·90 chains is single line and 1 furlong 2·50 chains is double line commencing in Stratford Road by a junction with Tramway No. 4 at its termination above described passing thence along and terminating in the said road at a point sixteen yards or thereabouts measured in a south-easterly direction from the Saracen's Head public-house Shirley :

Tramway No. 6 3 furlongs 7·60 chains in length whereof 2 furlongs 8·60 chains is single and 9 chains is double line commencing in Stratford Road Shirley by a junction with Tramway No. 5 at its termination above described passing thence along and terminating in the said road at or about its junction with Union Lane Shirley.

Power to
acquire
additional
lands.

7. Subject to the provisions of this Act the City Company may enter upon take hold and use for the purposes of street widenings all or any of the lands and premises or some part or parts thereof respectively herein-after described and delineated on the deposited plans and described in the deposited books of reference relating thereto and the Company may sell or may use for the general purposes of their undertaking (other than for a station for generating electrical power) any portions of any lands acquired under this section which may not be required for the purposes of street widenings Provided that any portion of the said lands actually used for the purposes of street widenings shall after the completion of such widenings form part of the street so widened and shall become vested in the road authority as part of the public highway.

The lands and premises herein-before referred to are as follows :— A.D. 1903.

In the parish of Yardley—

- (a) A strip of land abutting on the south side of Warwick Road between points respectively situate 404 yards or thereabouts west and 239 yards or thereabouts east of the junction of Redding Lane with the said Warwick Road :
- (b) A strip of land abutting on the north-east side of Warwick Road between points respectively situate 290 yards and 223 yards or thereabouts north-west of Knights Lane :
- (c) A strip of land abutting on the south-west side of Warwick Road between points respectively situate 255 yards and 33 yards or thereabouts north-west of Knights Lane :
- (d) A strip of land abutting on the north-east side of Warwick Road between Dudley Park Road and the graveyard of St. Mary's Church :
- (e) A strip of land and forecourt abutting on the north-east side of Warwick Road (High Street Acocks Green) and extending from Dudley Park Road to a point 40 yards or thereabouts north-west of Westley Road :
- (f) A strip of land abutting on the south side of Warwick Road (High Street Acocks Green) and extending for a distance of 34 yards or thereabouts in an easterly direction from Westley Road :
- (g) A strip of land abutting on the south-west side of Stratford Road between points respectively situate 60 yards and 190 yards or thereabouts measured in a north-westerly direction from Robin Hood Lane.

In the parishes of Yardley and Solihull—

A strip of land abutting on the south-west side of Warwick Road between points respectively situate 64 yards or thereabouts north-west and 148 yards or thereabouts south-east of the junction of Lincoln Road with the said Warwick Road.

In the parish of Solihull—

- (a) A strip of land abutting on the north-east side of Warwick Road and extending from a point 251 yards or thereabouts south-east of Lincoln Road for a distance of 170 yards or thereabouts in a south-easterly direction :

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(b) A strip of land abutting on the south-west side of Warwick Road and extending from a point 100 yards or thereabouts north-west of St. Bernard's Road for a distance of 223 yards or thereabouts in a north-westerly direction :

(c) A strip of land abutting on the north-east side of Warwick Road and extending from a point opposite St. Bernard's Road for a distance of 82 yards or thereabouts in a north-westerly direction.

Restriction
on taking
houses of
labouring
class.

8. The City Company shall not under the powers of this Act purchase or acquire ten or more houses which on the fifteenth day of December last were occupied either wholly or partially by persons belonging to the labouring class as tenants or lodgers or except with the consent of the Local Government Board ten or more houses which were not so occupied on the said fifteenth day of December but have been or shall be subsequently so occupied.

If the City Company acquire or appropriate any house or houses for the purposes of this Act in contravention of the foregoing provisions they shall be liable to a penalty of five hundred pounds in respect of every such house which penalty shall be recoverable by the Local Government Board by action in the High Court and shall be carried to and form part of the Consolidated Fund of the United Kingdom. Provided that the court may if it think fit reduce such penalty.

The expression "labouring class" means mechanics artisans labourers and others working for wages hawkers costermongers persons not working for wages but working at some trade or handicraft without employing others except members of their own family and persons other than domestic servants whose income does not exceed an average of thirty shillings a week and the families of any of such persons who may reside with them.

Period for
compulsory
purchase of
lands.

9. The powers of the City Company for the compulsory purchase of lands for the purposes of this Act shall cease after the expiration of three years from the passing of this Act.

For protec-
tion of county
council of
Worcester-
shire.

10. For the protection and benefit of the Worcestershire County Council (in this section referred to as "the county council") so long as they are the road authority in respect of main roads within the Yardley District the following provisions shall unless otherwise agreed apply and have effect (that is to say) :—

(1) The City Company shall as and when double lines are laid in addition to complying with section 28 of the

Tramways Act 1870 contribute one half of the cost (not exceeding seven hundred and fifty pounds) of paving with granite setts the whole of the remaining width of the carriageway not falling within the provisions of such section throughout the length of such portions of the said Tramways Nos. 1 1A 2 and 4 as are so laid : A.D. 1903.

- (2) The City Company shall before or concurrently with the construction or laying down of the said Tramways Nos. 1 1A 2 and 4 where the same will pass in front of any place of worship public school or other public institution pave with wooden blocks so much of the carriageway as fronts upon and extends for a distance of twelve yards on either side of any such place of worship public school or other public institution :
- (3) In all cases where by this Act or by the Acts incorporated therewith or by this section any portion of the roads whereon the said Tramways Nos. 1 1A 2 and 4 is required to be paved with granite setts or wood blocks such granite setts or wood blocks shall be laid on cement concrete six inches thick :
- (4) The City Company shall bear the cost of the removal and reinstatement of all gas lamps and all columns and service pipes used in connexion therewith which the Yardley Council may consider it necessary should be removed and reinstated by reason of the construction of the said Tramways Nos. 1 1A 2 and 4 :
- (5) When and so soon as the City Company proceed to construct the said tramways the City Company shall become liable to pay to the county council the sums following that is to say (1) the sum of one thousand five hundred pounds as a contribution towards the cost of rebuilding Greet Mill Bridge as soon as the county council have entered into a contract for rebuilding such bridge (2) the sum of five hundred pounds as a contribution towards the cost of widening or strengthening such other bridges as the county council may have widened or strengthened or shall think it necessary to hereafter widen or strengthen in consequence of the construction of the said Tramways Nos. 1 1A 2 and 4 and (3) within one month after the date on which the county road surveyor for the time being of the county of Worcester shall have certified to the county council in writing that the works in respect of which the contribution

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is to be made have been completed the following sums (that is to say) :—

- (a) Three hundred pounds as a contribution towards the costs of the widening and easing of the gradient of the portion of the Warwick Road known as Greet Hill;
- (b) Two hundred pounds as a contribution towards the cost of widening and improving the Tyseley Bridge;
- (c) Three hundred pounds as a contribution towards the cost of such kerbing and channelling as in the opinion of the county council shall be rendered necessary by the construction of the said Tramways Nos. 1 1A 2 and 4;
- (d) Fifty pounds as a contribution towards the cost of providing and laying a new 15-inch pipe in the existing ditch on the north-east side of the Stratford Road from a point 1 mile 6 furlongs 1 chain from the commencement of the said Tramway No. 4 to its termination and towards the cost of filling up such ditch.

For protec-
tion of Great
Western
Railway
Company.

11. For the protection of the Great Western Railway Company (herein-after referred to as “the Great Western Company”) the following provisions shall apply and have effect (that is to say) :—

- (1) If and when the Great Western Company require to reconstruct repair or paint any bridge belonging to them crossed by the additional tramways authorised by this Act in order to ensure the safety of the workmen employed in reconstructing repairing or painting such bridge the City Company shall cut off the electric current from the trolley wires at such times as shall be reasonably required for such purpose unless the City Company shall have previously adopted some other means of protection to the said workmen:
- (2) Nothing in this section shall extend to any matter to which section 44 of the City of Birmingham Tramways Act 1901 the marginal note whereof is “Special provisions as to use of electrical power” incorporated with this Act relates:
- (3) If any difference arises under this section between the City Company and the Great Western Company that difference shall be referred to an arbitrator to be appointed on the application of either party by the Board of Trade.

12. If the additional tramways are not completed within three years from the passing of this Act then on the expiration of such period the powers by this Act granted to the City Company for constructing the same or otherwise in relation thereto shall cease except as to so much thereof respectively as shall be then completed.

A.D. 1903.
Period for
completion
of tramways.

13. If the City Company fail within the period limited by this Act to complete the additional tramways or any of them and open the same for public traffic the City Company shall be liable to a penalty of fifty pounds a day for every day after the expiration of the period so limited until the said tramways are completed and opened for public traffic or until the sum received in respect of such penalty amounts to five per centum on the estimated cost of the uncompleted tramway or tramways and the said penalty may be applied for by any road authority landowner or other person claiming to be compensated or interested in accordance with the provisions of the next following section of this Act and in the same manner as the penalty provided in the third section of the Railway and Canal Traffic Act 1854 Every sum of money received by way of such penalty as aforesaid shall be paid under the warrant or order of such court or judge as is specified in that section to an account opened or to be opened in the name of the Paymaster-General for and on behalf of the Supreme Court in the Bank and to the credit specified in such warrant or order and shall not be paid thereout except as herein-after provided But no penalty shall accrue in respect of any time during which it shall appear by a certificate to be obtained from the Board of Trade that the City Company was prevented from completing or opening any tramway by unforeseen accident or circumstances beyond their control Provided that the want of sufficient funds shall not be held to be a circumstance beyond their control.

Penalty im-
posed unless
tramways
opened with-
in limited
time.

14. Every sum of money so recovered by way of penalty as aforesaid shall be applicable and after due notice in the London Gazette shall be applied towards compensating any landowners or other persons whose property may have been interfered with or otherwise rendered less valuable by the commencement construction or abandonment of any incompleated portion of any of the additional tramways or any portion thereof in respect of the non-completion of which the same was recovered and also in compensating all road authorities for the expense incurred by them in taking up any tramway or materials connected therewith placed by the City Company in or on any road vested in or maintainable by such road authorities respectively and in making

Application
of penalty.

A.D. 1903. — good all damage caused to such roads by the construction or abandonment of such tramway and shall be distributed in satisfaction of such compensation as aforesaid in such manner and in such proportion as to the High Court may seem fit And if no such compensation shall be payable or if a portion of the sum or sums of money so recovered by way of penalty as aforesaid shall have been found sufficient to satisfy all just claims in respect of such compensation then the said sum or sums of money recovered by way of penalty or such portion thereof as may not be required as aforesaid shall if a receiver has been appointed or if the City Company is insolvent and has been ordered to be wound up or the tramway or tramways in respect of which the penalty has been incurred or any part thereof has been abandoned be paid or transferred to such receiver or to the liquidator or liquidators of the City Company or be applied in the discretion of the court as part of the assets of the City Company for the benefit of the creditors thereof and subject to such application shall be repaid or re-transferred to the City Company.

Incorporating provisions of Act of 1901.

15. The sections herein-after referred to of the City of Birmingham Tramways Act 1901 are hereby incorporated with this part of this Act and shall with the necessary modifications extend and apply to the additional tramways and to the City Company in respect thereof as fully and effectually as if those sections had been re-enacted in this Act with reference thereto and as if any rural district council within whose district any of the additional tramways by this Act authorised are constructed were a local authority subject to the provisions of the Tramways Act 1870 (that is to say) :—

- Section 10 Gauge of tramways.
- Section 11 Rails of tramways.
- Section 12 Plan of proposed mode of construction.
- Section 13 Penalty for not maintaining rails and roads.
- Section 14 Tramways to be kept on level of surface of road.
- Section 15 Passing places to be constructed where less than nine feet six inches width left between footway and tramway.
- Section 16 Power to make additional crossings &c.
- Section 17 Temporary tramways to be made where necessary.
- Section 18 Stoppage of roads during execution of works.
- Section 19 Application of road materials excavated in construction of works.
- Section 20 Local authorities to have access to sewers.
- Section 24 Power to Company to take up tramways.

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| Section 29 | Tramways to form part of tramways authorised by Birmingham and Suburban Tramways Order 1882. | A.D. 1903.
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| Section 34 | Inspection by Board of Trade. | |
| Section 38 | Attachment of brackets to buildings. | |
| Section 40 | Posts &c. to be subject to approval of local authority or Board of Trade. | |
| Section 41 | Use of posts and brackets for lighting purposes. | |
| Section 42 | Posts &c. to be removed if user discontinued. | |
| Section 43 | Provisions as to motive power. | |
| Section 44 | Special provisions as to use of electrical power. | |
| Section 45 | For protection of Postmaster-General. | |
| Section 47 | Amendment of Tramways Act 1870 as to byelaws by local authority. | |
| Section 48 | Power to take licences &c. | |
| Section 49 | Apparatus used for mechanical power to be deemed part of tramway. | |
| Section 50 | Penalty for malicious damage. | |
| Section 51 | Byelaws. | |
| Section 52 | Recovery of penalties. | |
| Section 53 | Orders &c. of Board of Trade. | |
| Section 59 | Agreements with local authorities as to construction &c. of tramways. | |
| Section 60 | Traffic and other agreements with local authorities. | |
| Section 61 | Agreements as to purchase of tramways by local authorities. | |
| Section 62 | Running powers over tramways purchased. | |
| Section 63 | Company may take a lease of tramways from local authorities. | |
| Section 66 | Local authorities and road authorities may use tramways for certain purposes. | |
| Section 69 | Arbitration. | |
| Section 70 | Form and delivery of notices. | |
| Section 74 | Fares on Sundays or public holidays not to be raised. | |

16. Section 45 (For protection of Postmaster-General) of the City of Birmingham Tramways Act 1901 shall be and is hereby amended as follows :—

For protection of Postmaster-General.

- (a) Subsection (3) thereof shall be read as if the words within brackets “or the laying of lines crossing the lines of the Postmaster-General at right angles at the point of shortest distance and so continuing for a distance of six feet

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on each side of such point ” were omitted and such words shall be deemed to be omitted from the said subsection .

(b) The following provision shall have effect in addition to and shall be read with the provisions contained in the said section :—

If any telegraphic line of the Postmaster-General situate within one mile of any portion of the works of the City Company is injuriously affected and he is of opinion that such injurious affection is or may be due to the construction of the City Company's works or to the working of their undertaking the engineer-in-chief of the Post Office or any person appointed in writing by him may at all times when electrical energy is being generated by the City Company enter any of the City Company's works for the purpose of inspecting the City Company's plant and the working of the same and the City Company shall in the presence of such engineer-in-chief or such appointed person as aforesaid make any electrical tests required by the Postmaster-General and shall produce for the inspection of the Postmaster-General the records kept by the City Company pursuant to the Board of Trade regulations.

Alteration of
tramways.

17. The City Company may with the consent of the Board of Trade lay down double lines in lieu of single lines or single lines in lieu of double lines or interlacing lines in lieu of double or single lines on any of their additional tramways Provided that in the exercise of the powers of this section no rail shall be so laid that a less space than nine feet six inches shall intervene between it and the outside of the footpath on either side of the road if one third of the owners or one third of the occupiers of the premises abutting on the place where such less space shall intervene shall by writing under their hands addressed and delivered to the City Company within three weeks after receiving from the City Company notice in writing of their intention express their objection thereto.

Future
purchase of
undertaking
by local
authorities.

18. Section 43 of the Tramways Act 1870 shall not apply to the additional tramways authorised by this Act and in lieu thereof the following provisions shall have effect with regard to those tramways (that is to say) :—

The local authorities in whose districts the additional tramways are situate may if by resolution passed in manner prescribed by section 43 of the Tramways Act 1870 they

so decide within six months after the application of a period of thirty-five years from the passing of this Act or within six months after the expiration of every subsequent period of seven years by notice in writing require the City Company to sell and thereupon the City Company shall sell to them their undertaking in respect of so much of the tramways as are situate in their district upon terms of paying the fair market value thereof as a going concern but without any allowance for compulsory purchase such value to be in case of difference determined by an engineer or other fit person nominated as arbitrator by the Board of Trade on the application of either party :

A.D. 1903.

Provided that any such notice shall not be valid or effectual unless within three months after service thereof on the City Company or such further period as may be allowed by the Board of Trade a contract for sale containing provisions for vesting in the local authority the portion of the said undertaking situate in their district and a scheme or schemes for the future maintenance management and working of those tramways shall have been approved by the Board of Trade :

The local authorities may pay the purchase money and all expenses incurred by them under the authority of this section out of the like rate and shall have the like powers to borrow on the security of the same as if such expenses were incurred in applying for and obtaining and carrying into effect a Provisional Order obtained by them under the Tramways Act 1870.

PART III.

TRAMWAYS IN YARDLEY DISTRICT.

19. For the purposes of this Act the Yardley Council shall be deemed to be the local authority of the Yardley district within the meaning of the Tramways Act 1870.

Yardley Council to be local authority for purposes of Act.

20. Notwithstanding anything in the Tramways Act 1870 or in any other Act or Order to the contrary the Yardley Council if and when they acquire tramways in the Yardley District may place and run carriages on and may work any tramways which for the time being belong to or are in lease to them and may demand and take in respect of such tramways and in respect of the use of such carriages tolls rates and charges not exceeding those fixed by the Birmingham and Suburban Tramways Order 1882 scheduled to and confirmed by the Tramways Orders Confirmation (No. 3) Act 1882 and the Yardley Council may provide

Power to Yardley Council to work tramways.

A.D. 1903. — such stables buildings carriage trucks harness engines machinery apparatus horses steam cable electric and other plant appliances and conveniences as may be requisite or expedient for the convenient working or user of the tramways by animal or mechanical power.

Yardley Council not to interfere with tramways in Yardley District until acquired.

21. Notwithstanding anything contained in this part of this Act the Yardley Council shall not interfere with any of the tramways of the City Company constructed or authorised to be constructed within their district until the same shall have been acquired by the Yardley Council except with the consent of the owners thereof and from and after the acquisition of any such tramways the provisions of the Acts and Orders relating to any of the tramways so acquired in reference to the working of the tramways in the hands of the Yardley Council shall extend and apply to the working of the tramways by the Yardley Council as fully and effectually as if those provisions had been re-enacted in this Act with reference thereto.

PART IV.

MISCELLANEOUS.

Working agreements.

22. Subject to the provisions of this part of this Act any one or more of the companies the councils or the corporation on the one hand and any one or more of the other of them on the other hand may from time to time enter into and carry into effect and rescind contracts agreements and arrangements with respect to the following purposes or any of them (that is to say) :—

The lease working use management and maintenance by the contracting parties of all or any part of the respective tramways belonging to or leased by them and the works connected therewith :

The making of all necessary junctions or other subsidiary works :

The supply and maintenance under and during the continuance of any agreement whereby all or any or any part or parts of the respective tramways of the contracting parties are to be worked or used by the other of them of rolling stock plant and machinery necessary for the purposes of such agreement :

The appointment and removal of officers and servants :

The payments to be made and the conditions to be performed with respect to any of the matters aforesaid :

The management regulation interchange collection conveyance transmission and delivery of traffic upon or coming from or destined for the tramways of the contracting parties :

The fixing collection payment appropriation apportionment and distribution between the contracting parties of the rates income and profits levied taken or arising from the tramways and works of the contracting parties or any part thereof : A.D. 1903.

The supply for the purposes of this part of this Act to the contracting party or parties working or managing the tramways or any part thereof belonging to or leased by the contracting parties of electrical energy for working the said tramways wheresoever the same may be situated and the payments to be made or other consideration to be given in respect of any such supply of energy.

23. Subject to the provisions of this Act the companies or any of them may appropriate and use as stations for generating electrical energy the lands herein-after described belonging to and now occupied by the City Company (that is to say) :— Generating stations.

(1) Two thousand three hundred and fifty-eight square yards of land with the buildings thereon at Hockley in the city of Birmingham having frontages to Soho Road and Whitmore Street and bounded on one side by Hockley Brook and at the back by the land containing in area 11,882 square yards next herein-after described :

Eleven thousand eight hundred and eighty-two square yards of land with the building thereon at Hockley and having a frontage of 159 yards 1 foot 6 inches to Whitmore Street bounded at the back by Hockley Brook and on one side by the before-described land :

(2) A piece of land with the buildings thereon situate at Greet near Hall Green in the parish of Yardley in the county of Worcester having a frontage on the northern side thereof to the road leading from Birmingham to Stratford-on-Avon and bounded on the eastern side by the River Colne on the southern side by land now or formerly of F. Davis and Edwin Davis and on the western side by land now or formerly of E. J. Lowe and containing $3\frac{1}{2}$ acres or thereabouts :

(3) Nine thousand eight hundred and eighty square yards of land with the buildings thereon at Camp Hill in the said city of Birmingham having a frontage of 72 yards 1 foot 6 inches to Kyott's Lake Road 130 yards 1 foot 6 inches to Grafton Road and 145 yards 1 foot to Port Hope Road :

And the companies or any of them may on any part of the said lands erect maintain and use such buildings engines dynamos and

A.D. 1903. — other machinery apparatus works and conveniences as may be necessary or suitable for generating electrical energy and may for the purpose of supplying electrical energy for working any of the tramways for the time being belonging or demised to or worked or run over by them or any of them use any generating station constructed under this Act as well as any existing or authorised generating station of the companies or any of them and may supply electrical energy therefrom But nothing in this Act shall authorise the companies or any of them without the consent of the corporation to supply electrical energy to other persons in the city for any other purpose than for working tramways nor to erect or construct any station for generating electrical energy elsewhere than on the lands described in this section.

Repeal of portions of Birmingham Corporation Tramway Order 1885.

24. Section 23 (Penalty for using steam or mechanical power contrary to order or regulations) and Schedule A. mentioned in the said section of the Birmingham Corporation Tramway Order 1885 confirmed by the Tramways Orders Confirmation (No. 3) Act 1885 are hereby repealed and in lieu thereof the provisions of this part of this Act in relation to the subject matter of the said repealed section and schedule and their application to the tramways authorised by the Order of 1885 aforesaid shall obtain and have effect.

Trailing cars for through traffic.

25. The companies or the councils or any of them by agreement with the corporation in respect of any tramway within the city or with the council of the borough or district in which any tramway without the city is situate may for the purpose of through traffic run cars carriages or waggons coupled together not exceeding three in number so as to be drawn or propelled by the same engine at the same time over any tramways for the time being belonging to or leased or run over by any of them.

Agreements as to purchase of tramways by councils.

26. The companies or any of them on the one hand and the councils or any of them on the other hand in whose district the existing tramways belonging to the companies or any of them as well as the additional tramways by this Act authorised are situate may enter into and carry into effect agreements for or with respect to the postponement or anticipation of the date at which the right of such of the councils as the case may be to purchase such tramway or tramways or portion of tramway or tramways shall be exercised for such periods not exceeding a term of forty-two years from the date of the agreement (whether in extension of the period limited by the Tramways Act 1870 or any other Act or otherwise) and for such consideration whether by way

of rent or other payment by the owning company or otherwise and on such terms and conditions as may be agreed between the said owning company and such of the councils as the case may be. A.D. 1903.

27. The companies or any of them may accept and take from the local authority of any district a lease or leases of any tramways owned by such local authority and all works and conveniences connected therewith on such terms and conditions and for such period not exceeding a period of forty-two years from the date of the agreement as may be agreed between the companies or any of them and such authority and during the continuance and subject to the terms and conditions of any such lease the companies or any of them may work maintain and use the tramways thereby leased and demand take and recover in respect thereof tolls fares and charges not exceeding the fares tolls and charges authorised to be demanded thereon by any Act or Provisional Order relating to or regulating the same. The companies may take lease from local authorities.

28. If within six months after the passing of this Act any of the councils in whose district any tramway belonging to any of the companies is situate shall require such company to sell to them the said tramway forthwith the said company shall thereupon sell the same to the said council and the provisions of section forty-three of the Tramways Act 1870 shall mutatis mutandis apply to such sale. Provided that upon the completion of any sale under this section the council purchasing the said tramway shall grant to the company from whom the same is purchased a lease thereof for a term expiring at the expiration of twenty-one years from the passing of this Act and upon such other terms and conditions as shall be agreed or failing agreement as shall be determined by an arbitrator to be appointed on the application in writing of either of the parties by the Board of Trade and in settling the terms and conditions of the said lease such arbitrator shall take into consideration the number of years which the said company would otherwise have been entitled to continue to hold and work the said tramway before the council would have been able to purchase the same under section 43 of the Tramways Act 1870 and to undertake the working thereof. Sale of tramways by the companies.

29. Where the consent of any local or road authority (other than the corporation and also the Handsworth Urban District Council in respect of the tramway from the boundary of the city to New Inns Handsworth and known as "the cable tramway") is by this Act or by section 37 of the City of Birmingham Tramways Consent of local or road authority.

A.D. 1903. — Act 1901 or by section 35 of the Birmingham and Midland Tramways Act 1902 required before the exercise of any powers therein contained by the councils the companies the corporation or any of them such consent shall not be unreasonably withheld and if any difference arises as to whether any consent is unreasonably withheld that difference shall be referred to an arbitrator to be appointed by the Board of Trade.

Orders &c.
of Board of
Trade. **30.** All orders regulations and byelaws made by the Board of Trade under the authority of this Act shall be signed by a secretary or an assistant secretary of the Board.

Recovery of
penalties. **31.** Any penalty under this Act or under any byelaws or regulations made under this Act may be recovered in manner provided by the Summary Jurisdiction Acts.

Copy of Act
to be regis-
tered. **32.** The City Company shall deliver to the Registrar of Joint Stock Companies a printed copy of this Act and he shall retain and register the same and if such copy is not delivered within three months from the passing of this Act the City Company shall incur a penalty not exceeding two pounds for every day after the expiration of those three months during which the default continues and any director or manager of the City Company who knowingly and wilfully authorises such default shall incur the like penalty Every penalty under this section shall be recoverable summarily.

There shall be paid to the Registrar by the City Company on such copy being registered the like fee as is for the time being payable under the Companies Act 1862 on registration of any document other than a memorandum of association.

Provision as
to general
Tramway
Acts. **33.** Nothing in this Act contained shall exempt the City Company from the provisions of any general Act relating to tramways now in force or which may hereafter pass during this or any future session of Parliament or from any future revision or alteration under the authority of Parliament of the maximum rates or charges authorised by this Act.

Costs of Act. **34.** All costs charges and expenses of and preliminary and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the companies.

The SCHEDULE referred to in the foregoing Act.

A.D. 1903.

The Birmingham and Suburban Tramways Order 1882.
The Birmingham and Western Districts Tramways Order 1882.
The Birmingham and Western Districts Tramways Order 1883.
The North Birmingham Tramways Order 1883.
The North Birmingham Tramways Order 1884.
The Birmingham Central Tramways (Extension) Order 1885.
The Birmingham Corporation Tramways Order 1885.
The Birmingham Central Tramways (Extension) Order 1886.
The South Birmingham Tramways (Extension) Order 1886.
The Birmingham Central Tramways (Extension) Order 1887.
The City of Birmingham Tramways Act 1897.
The City of Birmingham Tramways Act 1901.

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